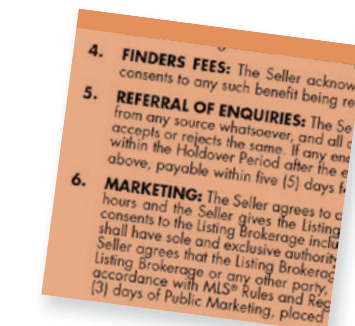
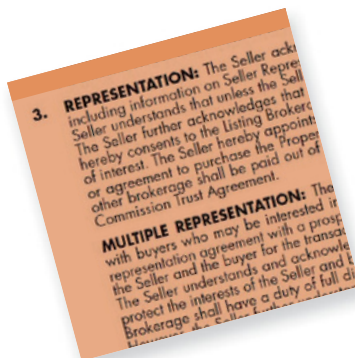


Seller Designated Representation Agreement



FORM 271 LISTING AGREEMENT

GENERAL USE

This form is a contract between the Seller and their TrilliumWest Designated Representative which gives the company the authority and permission to act on behalf of the Seller for the sale of a property. By signing this form the company and designated representative must legally represent the best interest of the Seller in the transaction for the duration of the agreement.

TOP SECTION OF THE AGREEMENT This section identifies the parties to the agreement and sets the time frame for which the contract is valid. **Note that the length of the agreement is negotiable and you can only sign one Seller Representation Agreement at a time. *Initialing in the MLS® box will allow the listing to be posted to the MLS® system and the listing Brokerage can share the listing with Co-operating Brokers who may have potential Buyers. Exclusive means it will not be distributed to the MLS® and can only be marketed through the Listing Brokerages efforts and channels.*

1. DEFINITIONS AND INTERPRETATIONS

This section clarifies the terms and outlines who will be referred to as the Buyer and Seller in the remainder of the document. **Anyone introduced to or shown the property includes any spouse, heirs, executors, administrators, successors, assigns, related corporations and affiliated corporations.*

2. COMMISSION: This section details the fee structure the Seller has agreed to pay the real estate company. It also indicates the number of days after the expiry of the contract the real estate company is still entitled to their fee if the Seller ends up selling the property privately to a Buyer introduced to the property during the contract period through the Listing Salespersons efforts- known as the "holdover period". **Note commission is still payable if the Seller does not complete due to default for or neglect on the Sellers behalf.*

3. REPRESENTATION: This section confirms that the Salesperson has explained the different forms of Agency relationship that may occur in a real estate transaction and it authorizes the real estate company to co-operate with any other real estate company to market the property, and breaks down the commission sharing structure between the two parties. **The Seller appoints the Listing Brokerage as the Seller's agent for the purposes of giving and receiving notices for any offer or Agreement to Purchase the property except in multiple representation*

4. FINDERS FEES

This section provides consent for the Salesperson to accept any finder's fees (for example mortgage companies may offer fees to bring clients). **This fee is in addition to any commission payable to the Salesperson and consent is required if a finder's fee arises and the fee is paid by the receiving party not the Seller.*

5. REFERRAL OF ENQUIRIES This section requires that the Seller work with the real estate company for the length of the contract and states that the Seller must inform their Salesperson of any enquiries. If they do not inform the Salesperson of any enquiry that results in a successful private sale within the listing period or any holdover period, the commission will still be payable.

**Note if Buyerstry to contact the Seller direct they should be instructed to speak with the Sellers representative.*

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- 6. MARKETING:** The Seller agrees to all hours and the Seller gives the Listing Brokerage exclusive rights to place "For Sale" and "Sold" signs on the property and to advertise the property according to company policy. The Seller will not be held liable for the advertising efforts of the company. **Written permission from the Seller and Buyer is required if the representative wishes to advertise the sale price.*
- 7. WARRANTY:** The Seller represents and warrants that the Seller has informed the Listing Brokerage of all easements, mortgages, encumbrances, and any other party, in accordance with MLS® Rules and Regulations, and that the Seller has informed the Listing Brokerage of all easements, mortgages, encumbrances, and any other party, in accordance with MLS® Rules and Regulations, and that the Seller has informed the Listing Brokerage of all easements, mortgages, encumbrances, and any other party, in accordance with MLS® Rules and Regulations.
- 8. INDEMNIFICATION AND INSURANCE:** The Seller agrees to indemnify and hold the Listing Brokerage harmless from any loss or damage to the Property or any other party, including theft, fire or vandalism, including but not limited to the Listing Brokerage and its employees, agents, and representatives.

6. MARKETING This section explains that the Seller gives the real estate company exclusive rights and permission to place "For Sale" and "Sold" signs on the property and to advertise the property according to company policy. The Seller will not be held liable for the advertising efforts of the company. **Written permission from the Seller and Buyer is required if the representative wishes to advertise the sale price.*

7. WARRANTY

This section ensures that the people signing actually have the authority to sell the property. It also goes on to confirm the disclosure of any third party claims to the property such as easements, mortgages encumbrances etc.

8. INDEMNIFICATION AND INSURANCE

This section provides that salespeople cannot be held liable for the condition of the property or damages that may occur while the property is on the market unless it was due to the Listing Brokerages gross negligence or a willful act. **This also confirms the Seller has insurance to cover any injury or property damage that may occur.*

9. FAMILY LAW ACT This section states that if spousal consent is required than the spouse has signed in the designated area. **Note even if only one spouse is on title the other spouse will be required to sign if it's the matrimonial home*

10. VERIFICATION OF INFORMATION This section gives the salesperson the authority to obtain and use any information regarding the property that may be required to help the sale or marketability of the property. **It gives the salesperson the authority to get information from governments, mortgage etc on the Seller's behalf.*

11. USE AND DISTRIBUTION OF INFORMATION This section gives the Salesperson the right under the Privacy Act to use personal information provided to them by the Seller in order to assist in the transaction provided it won't be given to any third parties. **This includes putting information, photography and other detailed information on the MLS® system.*

LISTING EXPIRY

This section indicates if you "do" or "do not" consent to other real estate companies contacting you in the event this listing agreement expires or is canceled.

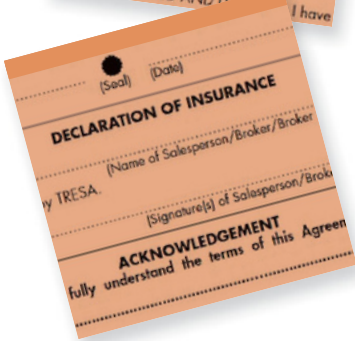
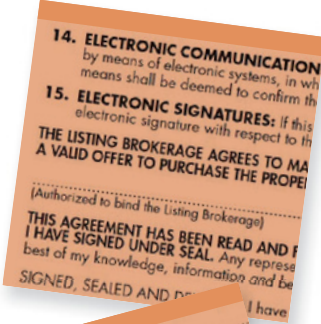
12. SUCCESSORS AND ASSIGNS

This states that the heirs, estate trustee or any other party legally acting on behalf of the Seller must also abide by the terms of this agreement. **Extra time may be required to close in order for probate to happen.*

13. CONFLICT OF DISCREPANCY

This section states that anything handwritten or added to this form shall supersede the pre-printed clauses.

Seller Designated Representation Agreement



14. ELECTRONIC COMMUNICATION

This section just allows this agreement to be sent electronically and it will still be legally binding

15. SCHEDULE(S) If specific forms or documents are added to the agreement; they would be detailed here. This section states the listing company will use its best efforts to market the property to obtain an offer acceptable to the Seller. The Salesperson must sign on behalf of the company.

SCHEDULE A

Outlines how commission will be handled in some unique scenarios and the services offered by your Designated Representative.

THE DECLARATION OF INSURANCE:

By signing this the Salesperson is stating they carry insurance as required by TRESA. This is one of the many benefits of using organized real estate.